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JAMES D. VAUGHN

Managing Director

Mr. James D. Vaughn, a Managing Director of iDiscovery Solutions (iDS), is a court-recognized expert who has given live testimony in well over 80 cases involving topics such as evidence preservation, documentation of events, and digital forensic methodologies and procedures. Mr. Vaughn has received and maintained several digital forensic certifications since 2004.

He has trained hundreds of law enforcement officers, attorneys, and other examiners on computer forensics and high-technology related issues involving best practices and methodologies. He has been involved in law enforcement since 2008, has co-developed digital forensic courses for the California Department of Justice, and has participated in high-stakes cases throughout his career.

Mr. Vaughn has extensive experience working on litigation and consulting matters in digital forensics, e-Discovery, and other high technology issues. His experience covers Windows, MACs, and mobile device platforms. He serves his clients through the litigation or consulting lifecycle by assisting them with important issues like data scoping, preserving, gathering, processing, hosting, review and production, as well as deeper diving issues uncovered through the use of digital forensics.

Mr. Vaughn's matters have widely varied and span across diverse areas such as misappropriation of trade secrets, intellectual property issues, contract disputes, fraud investigations, alleged hacking, and employment disputes, among others. He has served clients on the plaintiff side, the defendant side, and has served as a third-party neutral on several occasions.

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SELECT CONSULTING EXPERIENCE

- Provided computer forensic analysis testimony in a United States District Court spoliation matter that resulted in a default summary judgment of more than 5 million dollars against the plaintiffs.
- Led a team of computer forensic examiners in the analysis of over 20 computers for a large financial institution in an intellectual property matter. Assisted in creating computer security policies to mitigate future possible intellectual property theft.
- Led a team during the multiple location service of a civil order allowing the examination of opposing parties' computers. These computers maintained financial records showing the sale of millions of dollars of counterfeit merchandise in violation of international trademark and copyright laws.
- Provided expert witness testimony concerning spoliation of evidence where an individual had used a specific program to destroy data just days prior to his computer being inspected.
- Provided deposition testimony concerning file deletion activity on a computer involved in a multi- million-dollar litigation matter.
- Managed a banking industry SEC investigation involving a multi-terabyte collection and review of data, with all activities occurring at the client's offshore corporate offices.
- Managed a team of consultants that forensically preserved information from more than 100 computers from a global organization, which included the processing of multi-terabytes of data for an SEC investigation.
- Managed an incident response team that had to mobilize within a matter of hours. The team successfully preserved and forensically imaged 40 computers within nine hours, without the suspected employees knowing the imaging activity occurred.
- Selected as court appointed neutral expert to oversee an intellectual property dispute involving the preservation, collection, and production of data from numerous computers and servers.
- Served as an expert in Japan in response to electronic discovery requests involving numerous computers and multiple Japanese cities.

EDUCATION

- More than 1,800 hours of formal training in computer forensics, including (but not limited to):
- SANS FOR500 – Windows Forensic Analysis
- Cellebrite CCPA and CCLO Mobile Device Course
- IACIS Certified Computer Forensic Examiner Course
- Guidance Software Intermediate Training
- National White-Collar Crime Center Data Recovery and Analysis
- California DOJ POST Advanced Computer Forensics

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- Guidance Software Internet and E-mail Examination
- Guidance Software Advanced Training
- National White-Collar Crime Center Advanced Data Recovery Analysis

PUBLICATIONS

1. Text Message Screenshots – Real Or Fake (2019)
2. Mobile Device Data – Could It Be Stored Elsewhere (2019)
3. Employee Mobility - The Use of Digital Forensics in Trade Secret and other Employment Matters, Today's General Counsel Institute (2018)
4. How Cloud and Mobile Devices Have Changed Discovery, Corporate Counsel Business Journal (July 2018)
5. Trade Secret Disputes and Employment Risks, Metropolitan Corporate Counsel (July 2016)
6. Digital Forensics in Trade Secret Investigations, Trade Secret Litigation and Protection in California 3rd Ed. (2014)

SELECT SPEAKING ENGAGEMENTS AND CONFERENCES

1. L.A. County Bar Association: Challenges and Accessibility in ESI and Forensic Matters (June 2019)
2. California Bankruptcy Forum: Discovery of ESI in Bankruptcy Matters (May 2019)
3. The Knowledge Group Webinar: The Defend Trade Secrets Act – The Lawyer and Forensic Technologist Perspective (August 2016)
4. The 39th Annual Intellectual Property Institute: Hot Topics in California Trade Secrets Law – Digital Forensic Investigations (November 2014)
5. CEIC Conference: Left Side EDRM and Mitigating Risks for ESI Collections (May 2013)
6. Bridgeport Trade Secret Program: Understanding your ESI (May 2013)
7. Interop IT Conference: Mobile Device Forensics/e-Discovery (May 2013)
8. Masters Conference: Cloud Computing and Mobile Device Usage – Challenges it Brings to Your Litigation (April 2013)
9. San Diego ESI Forum: Fundamentals of Forensics for ESI Matters (January 2013)
10. ACA International Conference: Data Breach Investigations & E-Discovery (July 2012)
11. Risk Management Summit: e-Discovery & Social Media Investigations (February 2012)
12. Pac NW E.R. Physicians CLE: e-Discovery & Social Media Investigations (December 2011)
13. Master Series Webinar: Social Media Research and Collection (December 2011)
14. SwissRe CLE: Social Media Research and Collection (November 2011)

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TESTIMONY EXPERIENCE

1. Ecolab, Inc. and Nalco Company LLC v Anthony Ridley and Chemtreat, Inc., U.S. District Court, Eastern District of Tennessee, Case No. 1:22-cv-00050-TRM-SKL. Deposition testimony re alleged data exfiltra-tion, alleged access to personal cloud accounts, reset devices and measures taken to protect alleged trade secrets.
2. Karma Automotive LLC v Lordstown Motors Corp, et al, U.S. District Court, Central District, Case No. 8:20-cv-02104-JVS-DFM. Deposition testimony re data exfiltration, destruction of electronic data and the standard of care for preventing destruction of data from a technical aspect.
3. David Wells v Skrewball et al, State of California, San Diego County, Case No. 37-2019-00028014-CU-BC-CTL. Deposition testimony regarding mobile device text messages, the transfer of texts from device to device.
4. Patricia Hernandez v Continuity Care Home Nurses, State of California, Los Angeles County, Case No. 21STCV16663. Deposition testimony regarding the authentication of mobile device call records and voicemails.
5. 2022 – Saint Gobain Performance Plastics Corporation v. Polymer Concepts Technologies, Inc, State of California, Los Angeles County, Case No. EC 068518. Deposition testimony regarding data exfiltration, data usage, data dissemination and data quarantine/remedation methodologies.
6. 2022 – Koru Risk Management, LLC v. The Liberty Compnay Insurance Brokers, et al, State of California, Orange County, Case No. 30-2020-1252604-CU-IP-CJC. Deposition testimony re data deletions and data movement to cloud storage locations.
7. 2022 – William Stueber II v. Trilogy 5G, Inc. JAMS Case No. 5310000086. Hearing testimony regarding industry standards relied upon for conducting digital forensics.
8. 2022 – Jane Doe v. Wesleyan University, Case No. 19-cv-01919-JBA. Deposition testimony re certain logs relied upon for tracking authentication to networks and the Moodle online learning platform.
9. 2021 – The Best Label Company, LLC v. Custom Label & Decal, LLC, et al, Case No. RG-19017586. Fo-rensic neutral deposition testimony in an alleged trade secret misappropriation case re presence and deletion of files.
10. 2021 – U.S. Well Services, LLC v VoltaGrid et al, U.S. District Court, Southern District of Texas, Houston Division Case No. 4:21-cv-3441. Deposition testimony in a trade secret case re industry standards for the preservation, searching and remdiation of data from devices and accounts.
11. 2021 – Danaher Corporation v Lean Focus LLC, U.S. District Court, Western District of Wisconsin, Civil Action No. 3:19-cv-00750. Deposition testimony in an alleged trade secret misappropriation case re da-ta destruction, usage of USB devices and amount of traffic to certain host sites.
12. 2021 – Zimmer, Inc v Heraeus Medical, LLC, Superior Court, Kosciusko County Indiana, Case No. 43D04-1802-PL-000021. Deposition testimony in an alleged trade secret misappropriation case re usage of files and evidence preservation issues.

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13. 2021 – James Williams v Simpson Strong-Tie Company, Superior Court of California, Alameda County, Case No. RG19014788. Jury Trial testimony regarding web-surfing, photograph metadata and authenti-cation/reliability of electronic data.
14. 2021 – Millennium Health, LLC. V Barba, Monahan and Nepenthe, United States District Court, District or Oregon Portland Division, Civil Action No. 3:20-cv-2035. 30(b)(6) testimony on steps taken by the corporation to investigation actions of computer related data by departed employees.
15. 2021 – James Williams v Simpson Strong-Tie Company, Superior Court of California, Alameda County, Case No. RG19014788. Deposition testimony regarding web-surfing, photograph metadata and authentication/reliability of electronic data.
16. 2020 - Mercer Global Advisors, Inc. v. Dustin Rief, Benjamin Kingsley, JAMS Case No. 124002370. Arbitration hearing testimony regarding how forensics can be used and the apparent lack of forensic evidence in this matter to support misappropriation claims.
17. 2020 - Mercer Global Advisors, Inc. v. Dustin Rief, Benjamin Kingsley, JAMS Case No. 124002370. Deposition testimony regarding how forensics can be used and the apparent lack of forensic evidence in this matter to support misappropriation claims.
18. 2020 - United States International Trade Commission - Investigation No. 337-TA-1175 (Re: Certain Bone Cements) - Trial testimony in an alleged trade secret misappropriation case re usage of files and evidence preservation issues.
19. 2020 - United States International Trade Commission - Investigation No. 337-TA-1175 (Re: Certain Bone Cements) - Deposition testimony in an alleged trade secret misappropriation case re usage of files and evidence preservation issues.
20. 2020 – Hill Phoenix Inc. v Classic Refrigeration Socal Inc – United States District Court, Central District of California Case No. 8:19-cv-00695-DOC (JDex) - Deposition testimony re authentication of data, usage of USB devices and copying and opening of files.
21. 2020 – Richard Montz v CAA Sports – JAMS Reference No. 18STCV02098 – Arbitration testimony re authentication of data, ESI production deficiencies, and use of software to obtain data from a third party's mobile device.
22. 2020 - United States International Trade Commission - Investigation No. 337-TA-1159 (Re: Certain Lithium Batteries) – Deposition testimony in an alleged trade secret misappropriation case re usage of files and evidence preservation issues.
23. 2019 – Tanya Pontep v Philips Graduate University, Superior Court of California, County of Los Angeles, Case Number BC676833 – Deposition testimony regarding the usage of USB devices, copying and opening of files.
24. 2019 – Ryan Cordero v Tadashi Shoji and Associates Inc, Jams Reference No. 1220060219 – Arbitration testimony regarding storage and usage of iMessage and Skype.
25. 2019 – Galaxy Theatres LLC v Fairchild Record Service LTD, United States District Court, Central District of California Case No. 2:18-CV-03225-R-PLA – Deposition testimony regarding sending and receiving of emails and what artifacts are relied on to show receipt of emails.

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26. 2019 – Michael Reed v SBM Site Services, LLC, American Arbitration Association, AAA Case Number 01-18-0002-0952 – Arbitration testimony regarding forensic imaging, analysis, data destruction, remediation of ESI and opinions regarding reset/wiping of computer hard drives that go against industry standards.
27. 2019 – SG Homecare, Inc v Verio Healthcare, Inc, et al, Superior Court of California, County of Orange, Case Number 30-2015-00819810-CU-CO-CJC – Trial testimony regarding the usage of USB devices, copying and opening of files and file wiping.
28. 2018 - In Re Korean Ramen Antitrust Litigation, United States District Court, Northern District of California, San Francisco Division, Case No. C-13-04115-WHO – Trial testimony on authentication of documents that meet industry standards, email header and footer analysis and general document and file system metadata issues.
29. 2018 – SG Homecare, Inc v Verio Healthcare, Inc, et al, Superior Court of California, County of Orange, Case Number 30-2015-00819810-CU-CO-CJC – Deposition testimony regarding the usage of USB devices, copying and opening of files and file wiping.
30. 2018 – Smile Finders, et al. v. Chrystal Medina, et al., Superior Court of California, County of Los Angeles, Case Number BC492238 – Trial testimony on security measures, data authentication, and analysis of contact list.
31. 2018 – Capstone Logistics Holdings, Inc et al vs. Humano LLC et al, United States District Court Southern District of New York, Civil Action No. 17-cv-4819 – Deposition testimony regarding data misappropriation, data destruction, lack of evidence preservation within industry standards and trade secret investigative methodologies.
32. 2018 – Mark Strome vs. Tammy Strome, Superior Court of the State of California, County of Los Angeles, Case No. BD636746 – Trial testimony regarding email metadata and Dropbox.
33. 2018 – Doe v. Sutherland Healthcare Solutions, Inc, Superior Court of the State of California, County of Los Angeles, Case No. BC539436 – Deposition testimony regarding data security, data mining and the use/sale of PHI/PII data.
34. 2018 – Mark Strome vs. Tammy Strome, Superior Court of the State of California, County of Los Angeles, Case No. BD636746 – Deposition testimony regarding email metadata and Dropbox.
35. 2017 - Annie Gill vs. C.R. Laurence Intl, Superior Court of the State of California, County of Los Angeles, Central District, Case No. BC611501 – Trial Testimony on the imaging and analysis of mobile devices and computer hard drives.
36. 2017 – Blue Mountain Enterprises, LLC vs. Gregory S. Owen and Silvermark Construction Services, Superior Court of California, County of Solano, Case No: FCS049313 – Deposition testimony involving usage of removable devices, link files, and other forensic issues.
37. 2017 (Sept) - In Re Korean Ramen Antitrust Litigation, United States District Court, Northern District of California, San Francisco Division, Case No. C-13-04115-WHO – Second deposition testimony on authentication of documents that met industry standards for evidence preservation, email header and footer analysis and general document and file system metadata issues.

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38. 2017 (May) - In Re Korean Ramen Antitrust Litigation, United States District Court, Northern District of California, San Francisco Division, Case No. C-13-04115-WHO – First deposition testimony on authentication of documents that met industry standards for evidence preservation, email header and footer analysis and general document and file system metadata issues.
39. 2017 – Advantage Waypoint LLC vs. Michael Baker, United States District Court for the Middle District of Tennessee, Case No. 3:17-cv-01053 – Deposition testimony on Dropbox usage, deletion of data and the usage of removable devices.
40. 2017 – Advantage Waypoint LLC vs. Michael Baker, United States District Court for the Middle District of Tennessee, Case No. 3:17-cv-01053 – Preliminary Injunction Hearing - Testimony on Dropbox usage, and the usage of removable devices.
41. 2017 – Annie Gill vs. C.R. Laurence Intl, Superior Court of the State of California, County of Los Angeles, Central District, Case No. BC611501 – Forensic Neutral - Deposition testimony on the usage of anonymizing text messaging services.
42. 2017 – In the United States Bankruptcy Court for the Southern District of California, Case No. 16- 05968-LT11 – Testimony on forensic metadata, and trade secret investigative methodologies.
43. 2017 – Muna Aboabdo vs. The Regents of the University of California, Superior Court of California, County of Orange, Case No: 30-2016-00839546 CU-WT-CJC – Testimony regarding text message collections, deletions/wiping of data and other electronic evidence preservation methodologies that did not meet industry standards.
44. 2016 – Aon Corporation vs. Peter Baldwin et al, Superior Court of California, County of Fresno, Case No: 14 CE CG 00572 KCK – Testimony regarding how forensics can be used and the apparent lack of forensic evidence in this matter to support misappropriation and soliciting claims.
45. 2016 – Robert Warner vs. Flexera Software, American Arbitration Association, Case No. 01-15-0005- 9885 – Testimony regarding the usage of USB devices, copying and opening of files, data purging and Internet usage.
46. 2016 – The People of the State of California vs. Munir Uwaydah et al., Superior Court of California, County of Los Angeles, Central District, Cases No. BA425397 and BA435339 – Testimony regarding criminal discovery and the use of forensic tools to search forensic images vs load file production.
47. 2015 – Anthony Culpepper v. Bridgepoint Education – Arbitration testimony on forensic metadata for files created, modified and moved from device to device.
48. 2015 – Smile Finders, et al. v. Chrystal Medina, et al., Superior Court of California, County of Los Angeles, Case Number BC492238 – Deposition testimony on security measures, data authentication, and analysis of contact list.
49. 2015 – Invensure Insurance Brokers, Inc. v. ERM Insurance Brokers, Inc., Superior Court of the State of California, County of Orange, Central Justice Center, Case Number 30-2013-00638387-CU-BC-CJC – Trial testimony on forensic metadata, and trade secret investigative methodologies.

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50. 2015 – Invensure Insurance Brokers, Inc. v. ERM Insurance Brokers, Inc., Superior Court of the State of California, County of Orange, Central Justice Center, Case Number 30-2013-00638387-CU-BC-CJC – Deposition on forensic metadata, and trade secret investigative methodologies.
51. 2014 – Michael Colaco v. Cavotec S.A., Superior Court of the State of California, County of Orange, Central Justice Center, Case Number 30-2012-00601735-CU-BC-CJC – Deposition on file deletions.
52. 2014 – Forest River, Inc. and Peter Liegel v. Musick, Peeler & Garrett LLP, Superior Court State of California, County of Los Angeles-Central District, Case Number BC484643 – Deposition on forensic metadata.
53. 2014 – Don Hanks v. Amgen, Superior Court State of California, County of Ventura, Case Number 56- 2009-00342748-CU-WT-VTA – Deposition on altered metadata on produced documents.
54. 2013 – David Brower s. VSS Monitoring, Superior Court State of California, County of San Mateo, Case Number CIV519059 – Evidentiary Hearing on the alleged the alleged destruction of evidence that did not meet industry standards for evidence preservation.
55. 2012 – Lattig v. Transcontinental, U.S. District Court Nevada, Case Number 2:11-cv-01346-GMN-PAL
56. Deposition on alleged destruction of evidence and methodologies used for making the allegations.
57. 2012 – Chavarin v. Placentia - Yorba Linda Unified School District, Orange County Superior Court Case Number 30-2007-00100590 – Deposition on Internet history, search engines and forensic artifacts left behind from those activities.
58. 2012 – Mantech v. Analex (II), Virginia Circuit Court, Case Number 2011-9058 – Deposition involving usage of removable devices, link files, Internet history and other forensic issues.
59. 2012 – Barry Rosen v. Global Net Access LLC, United States District Court for the Central District of California, Case Number 10CV-02721 DMG (E) – Trial on ESI productions and ESI search methodologies, or lack thereof.
60. 2012 – Bruce W. Ballai v. Kiewit Power Conductors, District Court of Johnson County Kansas, Case Number 10CV9827 – Deposition on authenticity of data and that it had been preserved using industry standards.
61. 2012 – Form Factor v. Micro-Probe, Inc., Northern District of California, Case Number C 10-3095 PJH, 2012 WL 2061520 – Deposition on alleged theft of trade secrets.
62. 2012 – Mitratech Holdings v. Datacert, District Court of Harris County Texas, Case Number 2012- 11275 – Courtroom testimony on alleged theft of IP.
63. 2012 – HP v. Adrian Jones, Superior Court State of California, County of Santa Clara, Case Number 111CV198103 – Deposition testimony on usage of external devices and iPhone/iPad backup jobs.

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64. 2011 – Barry Rosen v. Global Net Access LLC, United States District Court for the Central District of California, Case Number 10CV-02721 DMG (E) – Deposition testimony on ESI search methodologies, or lack thereof.
65. 2011 – Yardi Systems v. Real Pages, United States District Court for the Central District of California, Case Number 2:11-cv-00690-ODW-JEM – 30(b)(6) testimony on the company infrastructure, data preservation and data collection efforts.
66. 2011 – Mantech v. Analex, Virginia Circuit Court, Case Number 2008-5845 – Deposition testimony involving usage of removable devices, link files, internet history and other forensic issues.
67. 2010 – Compass Chemical v. True North Products, Georgia Northern District Court, Case Number 1:2009cv03491 – Motion Hearing testimony involving the usage of removable devices, Internet history and access to company databases.
68. 2010 – Compass Chemical v. True North Products, Georgia Northern District Court, Case Number 1:2009cv03491 – Deposition testimony involving the usage of removable devices, Internet history and access to company databases.
69. 2009 – Canon U.S.A., Inc., v. William Crow, United States District Court for the District of Arizona, Case Number 4:2009cv00110 – Testimony involving file deletion activity in an alleged theft of trade secret.
70. 2008 – Global Naps, INC v. Verizon New England Inc., United States District Court for the District of Massachusetts, Case Number 02-12489-RWZ – Evidentiary Hearing before the Honorable Rya W. Zobel involving the alleged destruction of evidence.
71. 2008 – Global Naps, INC v. Verizon New England Inc., United States District Court for the District of Massachusetts, Case Number 02-12489-RWZ – Deposition testimony involving the alleged destruction of evidence.
72. 2008 – Griffin, Kubik, Stephens & Thompson v. Morgan Stanley DW, Inc. – Illinois Northern District Court, Case Number 07-00366 – Arbitration testimony involving the alleged destruction of evidence.

TEACHING EXPERIENCE

- California Department of Justice - Intermediate and Advanced Internet Investigations Courses
- Orange County Sheriff's Department Internet Safety Course
- Guidance Software Internet and E-Mail Course
- HTCIA Designing a Computer Forensics Network
- HTCIA Network Evidence Preservation Methodologies

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COURSE DEVELOPMENT

- Developer – California MCLE Digital Evidence Presentation
- Co-Developer – California DOJ Computer Evidence Recovery and Analysis
- Co-Developer – California DOJ Advanced Computer Forensics
- Co-Developer – Evidence Preservation, Collection, and Courtroom Testimony Course for California State Bar Attorneys and Investigators

PROFESSIONAL AFFILIATIONS

- International Association of Computer Investigative Specialists (IACIS)
- Sedona Conference – Working Group 12 – Trade Secret Litigation

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